

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1764

By: Kerbs

AS INTRODUCED

An Act relating to public lands; amending Section 1, Chapter 175, O.S.L. 2024 (64 O.S. Supp. 2024, Section 1097), which relates to unauthorized camps; prohibiting use of county or municipal-owned lands for unauthorized camps; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 175, O.S.L. 2024 (64 O.S. Supp. 2024, Section 1097), is amended to read as follows:

Section 1097. A. As used in this section, "unauthorized camp" means any tent, shelter, or bedding constructed or arranged for the purpose of or in such a way to permit overnight use on a property not designated as a campsite.

B. Persons may not use state-owned, county-owned, or municipal-owned lands for the purposes of establishing an unauthorized camp.

C. Any person who violates the provisions of this section shall, upon conviction, be guilty of a misdemeanor punishable by a fine not to exceed Fifty Dollars (\$50.00) or by imprisonment in the

1 county jail not to exceed fifteen (15) days, or by both such fine
2 and imprisonment. However, a person who commits a first violation
3 of this section shall be issued a warning, and a citation may not be
4 issued unless the person refuses any assistance offered to them by
5 the arresting officer. Such assistance may include, but is not
6 limited to, transportation to a shelter, food pantry, or other place
7 where resources are made available to assist the indigent and
8 homeless.

9 SECTION 2. This act shall become effective November 1, 2025.

10
11 60-1-10060 MJ 11/18/24
12
13
14
15
16
17
18
19
20
21
22
23
24